Swindon New Eastern Villages

Land at South Marston and Rowborough

Addendum to the Planning Statement (October 2013)

(incorporating draft S106 Heads of Terms, open space assessment, details of affordable housing provision and consideration of sequential approach to employment and retail floorspace)

April 2016

CONTENTS

1.0 INTRODUCTION 2

2.0 SITE LOCATION AND CONTEXT 9

3.0 DESCRIPTION OF THE PROPOSALS 12

4.0 PLANNING POLICY CONTEXT 24

5.0 MERITS OF THE PROPOSALS 43

6.0 PLANNING OBLIGATIONS / S106 HEADS OF TERMS UPDATE 45

7.0 CONCLUSION.....47

1.0 INTRODUCTION

1.1 This Planning Statement Addendum is prepared on behalf of Hallam Land Management Limited, Hannick Homes & Developments Limited and Taylor Wimpey UK Limited (HHT) in support of outline planning application (OPA) for a residential led, mixed use development on land east of Swindon and north of A420, registered valid on 11th November 2013 (LPA ref: S/13/1555).

1.2 The project team, on behalf of the applicants has worked closely with key stakeholders through preparation and progression of this application which seeks to deliver up to 2,380 homes with mixed use, comprising: community; employment; education; local retail uses; and formal and informal open space provision.

1.3 This Addendum to the Planning Statement forms part of the submission of "further information" that responds directly to the request made under Regulation 22 (1) and additional information and or updated information that responds to requests made by the Council and statutory consultees and other stakeholders.

1.4 Specifically, this Addendum to the Planning Statement has been prepared to explain the amendments sought to the application proposals, together with changes in the application site and its context, and provides an updated planning policy framework.

1.5 It seeks to satisfy specific comments raised through the considerable and detailed consultations on the application proposals. It includes reference to affordable housing provision, provides an updated open space assessment and a progressed draft heads of terms and includes consideration of sequential approach to employment and retail floorspace as required by Swindon Borough Local Plan polices.

1.6 The Planning Statement is not reproduced in its entirety and should therefore be read alongside the Planning Statement dated October 2013. The Planning Statement and its Addendum has been prepared by David Lock Associates.

Application Proposals

1.7 The Swindon Borough Local Plan 2026 (2015) allocates a strategic extension site to the east of Swindon for circa 8,000 dwellings together with associated retail, employment, education and leisure uses.

1.8 This OPA comprises Phase 1 of the strategic extension site to the east of Swindon, known as the New Eastern Villages (NEV), with all matters reserved except access for:

- up to 2,380 residential dwellings (class C3);
- up to 1,500 sqm of employment floor space (class B1);
- mixed use space for local retail and other services comprising up to 1,500 sqm of Use Class A1; with provision also and in addition for A2, A3, A4, and A5 uses.
- two primary schools one 2 form-entry and one 1 form-entry (class D1);
- community and sport buildings (classes D1 and D2) ;
- sheltered accommodation (class C2/C3) ;
- green infrastructure including formal pitches, informal open space, landscape areas and children's play spaces (including Neaps/Leaps/MUGA);
- sustainable urban drainage systems including balancing ponds and drainage channels;
- connections to the surrounding highway, footpath and bridleway network;
- infrastructure and utilities provision including car parking; and
- ground remodelling, engineering works and demolition.

1.9 The proposals aim to establish a mixed use, sustainable urban extension that will form part of the wider NEV that supports the overall growth objectives for Swindon, in general compliance with policies NC3 and RA3 within the Swindon Borough Local Plan 2026.

1.10 The application proposals are detailed more fully in section 3 of this Planning Statement.

Applicants and Land Ownership

1.11 Details in relation to Applicants and land ownership as set out in the Planning Statement (October 2013) remain applicable.

Applicants Approach – Town Developer Role

1.12 Details in relation to Applicants Approach as set out in the Planning Statement (October 2013) remain applicable.

Description of Development

1.13 A minor amendment is proposed to the description of development for which outline planning permission is sought.

1.14 Firstly, an amendment is proposed to reduce the amount of retail and employment floorspace proposed within the mixed use centres and secondly to include provision for an additional primary school to be provided within the South Marston part of the development in specific eventuality that the expansion of the existing South Marston Primary School does not proceed.

1.15 The description of development is amended as follows:

"Outline Planning Permission, for a sustainable urban extension to the east of Swindon and north of the A420 of up to 2,380 dwellings together with ~~a~~ mixed use local centre<u>s/areas</u> ~~and mixed use areas~~ [including A1 retail up to ~~2,500~~ <u>1,500</u> sq metres, services (A2), restaurants, pubs and takeaways (A3, A4, A5), business uses (B1) up to ~~2,500~~ <u>1,500</u> sq metres, residential]; community uses (D1); sheltered <u>and/or care</u> accommodation <u>(C2/C3)</u>; <u>two</u> primary school<u>s</u>; green infrastructure including formal (including playing fields) and informal open space, landscape<u>,</u> <u>biodiversity</u> and amenity space; <u>play space (including Neaps/Leaps/MUGA);</u> changing and sports facilities (including D2) <u>and ancillary retail uses</u>; sustainable drainage systems; highway, cycle and pedestrian routes; car parking; infrastructure (including utilities); engineering works including ground remodelling; demolition, site reclamation and removal of structures; the formation of new accesses from the A420, Old Vicarage Lane and Thornhill Road".

Planning Application Documentation

1.16 The outline planning application was submitted with a full suite of supporting information, in conformity with SBC's validation checklist for outline applications with some but not all matters reserved.

1.17 The submission documentation (April 2016) includes the following

- Further Information Document

  The Further Information Document is a composite Further Information Document containing both "Further Information" requested by the Local Planning Authority under Regulation 22, together with additional any necessary updates to the ES for instance as may be required to reflect changes to the proposed development.

The Further Information Document contains a series of appendices that provide revised (wholly updated) assessments and supplementary information (addenda) to the Environmental Statement (October 2013).

- Appendix 4: Addendum to Chapter 2 - The Site and Proposed Development
- Appendix 5: Revised Chapter 3 - Planning Policy Overview
- Appendix 6: Addendum to Chapter 4 - Socio-Economic Impacts
- Appendix 7: Revised Chapter 5 – Transport
  Includes Revised Transport Assessment (TA) (appendix 7a)
  and Revised Travel Plan Framework (TPF) (appendix 7b)
- Appendix 8: Revised Chapter 10 - Historic Environment
- Appendix 9: Addendum to Chapter 6 - Air Quality
- Appendix 10: Addendum to Chapter 7 – Noise and Vibration
- Appendix 11: Addendum to Chapter 8 – LVIA
- Appendix 12: Addendum to Chapter 9 – Ecology and Biodiversity
- Appendix 13: Addendum to Chapter 11 - Agriculture and Soil Resources
- Appendix 14: Addendum to Chapter 12 - Water Resources
  Includes Revised Flood Risk Assessment (appendix 14a)
- Appendix 15: Addendum to Chapter 13 - Ground Conditions
- Appendix 16: Revised Chapter 15 – Conclusion
- Appendix 17: Revised Non-Technical Summary

- Revised Application Drawings:

  - Site Location Plan ref LHL005-144 Rev E
  - Development Framework Plan ref LHL005-147 Rev W
    The extent of the changes to the Application Site boundary and the Development Framework Plan are reported at paragraph 2.4 and 2.6 of the Further Information Document.
  - Old Vicarage Lane Junction Plan ref 1335-HL-57 Rev G
  - Thornhill Road Proposed Junction ref 1335-HL-056 Rev D
  - A420 Thornhill Road junction 1335-HL-058 Rev D

- Planning Statement Addendum (incorporating open space assessment, details of affordable housing provision and draft S106 Heads of Terms, consideration of sequential approach to employment and retail floorspace); and

- Revised Design and Access Statement.

1.18 With the exception of the revisions as referred to above, the Planning Application Documentation remains as submitted, dated October 2013.

Principle, Context and Timing of Application

1.19 The outline planning application is submitted in the context of the Government's clear commitment to growth and development, now enshrined within the National Planning Policy Framework (NPPF). That the NPPF provides a principal context for the consideration of the application proposals is emphasised by the absence of an up to date local development plan document for Swindon. The NPPF espouses the presumption in favour of sustainable development as the golden thread running through the planning system.

1.20 The NPPF introduces a presumption in favour of sustainable development and confirms that "*housing applications should be considered in the context of the presumption in favour of sustainable development*" (para 49).

1.21 A fundamental dimension to the promotion of sustainable development in the NPPF is the requirement for local planning authorities to provide the supply of housing required to meet the needs of present and future generations. It is a "core planning principle" to "*proactively drive and support sustainable economic development to deliver the homes, business and industrial units, infrastructure and thriving local places that the country needs"* (para 17). To this end it is a core planning principle also to "*boost significantly the supply of housing*" (para 47) and to deliver a wide choice of new homes including, specifically, homes to meet affordable housing needs (para 50).

1.22 The applicants are committed to the early delivery of the site for development. There are no constraints to prevent the development proposals delivering new homes (both private and affordable) at the earliest opportunity, thereby contributing fundamentally to the achievement of the core objectives of the NPPF. It is anticipated that the grant of planning permission for the proposals would allow an early commencement on site.

1.23 Paragraph 14 of the NPPF provides the specific guidance as to how the presumption in favour of sustainable development is to apply in decision making on applications. Proposals in accord with the development plan are to be approved without delay.

1.24 Swindon Borough Local Plan 2026 (March 2015) provides a positive framework within which to plan the development and one that has set the objectives that have influenced the evolution of the proposals.

1.25 The principle of an easterly expansion of Swindon as the most suitable location to deliver housing to meet the ever expanding local need within Swindon, is deeply rooted. Swindon Principal Urban Area Study (2003), which in turn informed the then review of the Wiltshire and Swindon Structure Plan to 2016, identified the area east of the A419(T) as the most suitable location for the town's future large scale growth. That Study equally informed the draft Regional Spatial Strategy for the South West through to 2026.

1.26 The principle of the NEV is articulated within the Council's East of Swindon Evidence Base Update (March 2011) which sets out the principle that east, is the most appropriate direction for Swindon to develop into the longer term and that large scale expansion of the town in that direction is preferable to more dispersed growth around its periphery.

1.27 The *Swindon Borough Local Plan 2026* was adopted in March 2015. Policy NC3 of the Plan allocates the Site as part of a mixed use urban extension of about 8,000 new homes with associated retail, employment, education and leisure uses to the east of Swindon, known as the New Eastern Villages. The Application Site comprises part of this allocation, comprising solely of land north of the A420, which includes the allocation at Rowborough and the expansion of South Marston. Policy RA3 provides further policy and design context for the expansion of South Marston village.

1.28 The housing trajectory which supports the Local Plan identifies a build-out period of 15 years or more to deliver the NEV. The evidence base supports a phased and co-ordinated approach to development east of Swindon, commencing with a first phase north of the A420.

1.29 The proposed development represents a scheme that is entirely deliverable, unconstrained by landownership or any other major constraints. To facilitate early commencement of development, the application is now supplemented by a package of revised and additional information which demonstrates an approach that secures delivery of the necessary infrastructure required to support the proposed development without comprising the principle nor delivery of the remainder of the New Eastern villages phases, proposed south of the A420.

Relationship of OPA to wider development of New Eastern Villages

1.30 This OPA seeks permission for up to 2,380 dwellings comprising Phase 1 of the 8,000 dwellings allocated through the Swindon Local Plan, to the east of Swindon, known as the New Eastern Villages (NEV).

1.31 The *Eastern Villages Draft Supplementary Planning Document (2013*) is no longer being progressed by Swindon Borough Council. Local Plan Policy NC3 sets out the overarching design concept for development of the New Eastern Villages that seeks the creation of individual "villages" with their own separate identity, whilst being integrated through provision of green infrastructure and provides the necessary confidence as to the satisfactory relationship between the application proposals and the whole of the NEV, which requires that each phase of development must have the infrastructure to support itself and must avoid any further constraint being placed on subsequent phases.

1.32 The application is submitted within this context and includes details of all key infrastructure elements required by the development, demonstrating an intent for early commencement of the development and defining an approach that ensures a self-sustaining form of development, avoiding further constraints being placed on subsequent phases of the NEV.

1.33 The application proposals are timely and also capable of early implementation. The evidence base that underpins the submission of this OPA and upon which significant weight should be placed when considering the application is deeply rooted. The proposals are consistent with the policy framework for the expansion of South Marston and Rowborough and the delivery of the NEV as a whole.

2.0 SITE LOCATION AND CONTEXT

Location

2.1 Details in relation to site location as set out in the Planning Statement (October 2013) remain applicable.

2.2 The boundary of the application Site has been revised with the exclusion of some areas of green space from the application proposals – to the east of South Marston Farm and adjacent to South Marston Brook. Additional minor inclusions of land within the application site to reflect ownership boundaries and to include a small area of additional highway land on Old Vicarage Lane. Overall the effect of the changes to the boundary is a reduction of approximately 9 hectares in the site area – to 153 hectares. A revised Location Plan is presented at **Appendix 2** to the Environmental Statement Further Information submission.

2.3 Planning applications are currently before the Council for the redevelopment of two local employment areas, Crown Timber and Thornhill Industrial Estate, at the western end of South Marston Village, identified by Local Plan Policy RA3 for brownfield re-development to help improve the physical environment of the village. The two applications proposed some 162 dwellings.

Physical Characteristics

2.4 Details in relation to physical characterises of the site as set out in the Planning Statement (October 2013) remain applicable.

Landscape

2.5 Details in relation to landscape within the site as set out in the Planning Statement (October 2013) remain applicable.

Topography

2.6 Details in relation to site topography as set out in the Planning Statement (October 2013) remain applicable.

Settlement Pattern

2.7 Details in relation to settlement pattern within, and adjacent to the site as set out in the Planning Statement (October 2013) remain applicable.

Historic Environment

2.8 There are no Conservation Areas, Registered Parks or Gardens, or Scheduled Monuments located within the site. There a number of listed buildings in close proximity to the application site: Priory Farmhouse; Manor Farmhouse; The Red House; Nightingale Farmhouse; St Mary Magdalen Church; Church Farm; Longleaze; and Marston Farmhouse.

2.9 The Proposals Map within the Local Plan identifies an area identified as a significant unscheduled archaeological feature centred on South Marston Farm and identified primarily on the basis of its medieval features.

2.10 The potential effects on heritage assets have been considered at the masterplanning stage. The Proposed Development has been designed to enable the preservation *in situ* of the majority of the area interpreted as a late prehistoric/Roman settlement between Manor and South Marston Farms. Mitigation of impacts on such non-designated heritage assets will comprise archaeological evaluation, and where necessary and/or appropriate, excavation and recording of any archaeological remains.

2.11 A significant amount of intrusive archaeological work has been undertaken following submission of the planning application, and in accordance with a written scheme of investigation agreed with Wiltshire Council and Swindon Borough Council. A revised Heritage Assessment has been submitted and presents a comprehensive update to include assessment of the built heritage as well as results of geophysical survey and trenching. This forms **Appendix 8** of the Environmental Statement Further Information submission.

Ecology

2.12 The site is not subject to any ecological designations. The ecological assessment detailed within Chapter 9 of the ES identifies the ecological habitats on the site and sets out the outcome of a comprehensive series of ecological surveys undertaken

over many years including the most recent survey seasons. An addendum to Chapter 9 Ecology and Biodiversity is provided at **Appendix 12** of the Environmental Statement Further Information submission, which provides discussions relating to updated ecological surveys.

2.13 The proposed layout has taken into account habitats and features of value at an early stage and seeks to retain and enhance ecological features of value, as far as practicable, through the Green Infrastructure Framework (GIF). A revised GIF has been prepared to reflect changes to the applications proposals and is presented at **Appendix 11c** of the Environmental Statement Further Information submission.

2.14 The proposed GIF equates to more than some 65 ha or over 40% of dedicated GI, where enhancements to specific habitats will be delivered by the proposed development through the creation of further areas of planting and natural spaces within a wider network of green infrastructure. This will mitigate for the minor loss of existing habitats and provide long term biodiversity benefits.

2.15 The Revised GIF also includes an Open Space Access Strategy that illustrates the variety of habitats provided within the GIF and sets out a high level strategy that explores how these areas might be used, both for residential amenity and biodiversity enhancement.

3.0 DESCRIPTION OF THE PROPOSALS

Physical Design and layout

3.1 There have been a number of masterplan amendments to the applications proposals. The amendments to the development proposals are summarised below and are reflected in the revised Development Framework Plan (LHL-147 Rev W).

3.2 While the overall scale of development within the application proposal remains unchanged (2,380 dwellings), there is a reduction in the land proposed for residential development at South Marston such that the proposals are now to provide up to 500 dwellings at South Marston. The balance of dwellings (some 1,880) is proposed at Rowborough to form one of the larger new villages within the NEV allocation.

3.3 Additional provision is made within the amendments to the application proposals for a primary school within the application site within the South Marston part of the proposals – to be provided in the eventuality that the expansion of the existing South Marston Primary School does not proceed. A site of approximately 1.6 hectares is provided at a location accessible within the South Marston expanded village to accommodate a single form entry school, land which would otherwise form part of the residential uses on the site. Were this land to be developed as a primary school then replacement residential land would be brought forward for development, an equivalent area of residential development (approximately 1.6 hectares) is therefore included within the Development Framework Plan and this assessment.

3.4 The proposed Main Street (primary street) through South Marston has been realigned to a location further north within the expanded village. The Main Street will be experienced as a street with development frontage and within a landscaped setting, which supports public transport use, accommodates cycle and pedestrian use and provides a structuring element for the village expansion.

3.5 The precise location, range and combination of community facilities to be contained within the village centre remains to be finalised. While one option is to accommodate a community building and/or facilities on land owned by the Parish Council adjacent to the application site, the application proposals provide for such provision within the application site should this prove to be the most appropriate means by which such community facilities can be provided or that such facilities as are necessary cannot or do not come forward on the Parish Council land. Two alternative locations are

shown for accommodating a community facility within the application site on the Development Framework Plan.

3.6 Other refinements include:

- refinements to the development parcels as a result of the further progression of the master planning process and in the light of updated environmental information that accompanies the application;
- provision is made, should this be required, for an access from the application proposals to the land owned by South Marston Parish Council adjacent to the application site;
- inclusion of additional green corridors within the development including additional view corridors and further consideration of the edge treatments;
- reorganisation of formal open spaces including provision of some additional allotments within Rowborough.

3.7 The application proposals make provision for an appropriate and effective movement network to serve the proposed development – in particular in relation to the expanded South Marston village. It is not part of the application proposals to deliver a complete northern loop road to the north of the Manor Farm complex. The applicants cannot deliver a connection across the private rights of way that exist in particular along the track(s) between Old Vicarage Lane (South of the Hotel) and the Manor Farm buildings group, and there are other private rights of way.

3.8 However the application proposals seek to facilitate a northern loop road around Manor Farm. The DFP demonstrates a willingness by the applicants to facilitate such a connection by providing a road link to a point close to the track on either side, albeit not across the track. Such a connection across the track would need to be made by Swindon Borough Council, and/or third party. Regardless of whether vehicular connection is made, the transport and pedestrian/cycle connections will be extensive and provide excellent connectivity within the expanded village. Any further connection to Old Vicarage Lane that crosses the same or other tracks with private rights of way would require the same approach.

Residential Development

3.9 Details in relation to residential development as set out in the Planning Statement (October 2013) generally remain applicable.

3.10 While the overall scale of development within the application proposal remains unchanged (2,380 dwellings), there is a reduction in the land proposed for residential development at South Marston such that the proposals are now to provide up to 500 dwellings at South Marston, (previously 580), at an average density of around 30 dwellings per hectare.

3.11 The balance of the application proposals (some 1880) will be delivered as part of a new village at Rowborough at an average density of around 40 dwellings per hectare.

3.12 Overall, the development will adopt the approach of graded densities with higher densities in core locations of the layout and lower densities on the edge. This will provide variety and character with a range of street scenes, plot designs and house types.

3.13 Provision will be made for affordable housing as part of the proposals. The amount, type and tenure of affordable housing will be subject to agreement with Swindon Borough Council and agreed in the light of the wider requirement for infrastructure delivery and other planning and design objectives.

3.14 Local Plan policy HA2 of the Local Plan seeks a target of up to 30% affordable housing. For South Marston Local Plan policy RA3 seeks a target of no more than 20% affordable housing.

Neighbourhood Mixed Use Centres

3.15 Details in relation to neighbourhood mixed use centres as set out in the Planning Statement (October 2013) generally remain applicable.

3.16 The application proposes an amendment to reduce the amount of retail and employment floorspace proposed within the mixed use centres. Planning permission is now sought for up to 1,500 sqm (previously 2,500sqm) of small scale employment (class B1) and mixed use space for local retail and other services comprising up to 1,500 sqm (previously 2,500sqm) of Use Class A1 and with provision also and in addition for A2, A3, A4, and A5 uses. The precise uses will be determined at the reserved matters stage, but could include, for example, a small convenience store and other shops for 'top up' shopping, take-away, offices for start up local businesses, and cafes and food and drink outlets.

3.17 HHT and their consultant team have attended a number of planning and design workshops within South Marston Parish Council, to explore the expansion of the village centre at South Marston and the aspirations of the existing community. Although a new community building, recreation and open space provision is sought, the emerging South Marston Neighbourhood Plan does not provide definitive guidance.

3.18 Further information relating to the form, layout and design principles for the mixed use centres at Rowborough and the community facilities at South Marston is provided within the Revised Design and Access Statement (April 2016).

Education Provision

3.19 The application proposals now provide for an alternative approach to delivering primary school places to a 1FE extension to the existing South Marston Village school as previously sought.

3.20 Additional provision is made within the amendments to the application proposals for a primary school within the application site within the South Marston part of the proposals – to be provided in the eventuality that the expansion of the existing South Marston Primary School does not proceed as planned. A site of approximately 1.6 hectares is provided centrally within South Marston to accommodate a single form entry school, land which would otherwise form part of the residential uses on the site. Were this land to be developed as a primary school then replacement residential land would be brought forward for development. An equivalent area of residential development (approximately 1.6 hectares) is therefore included within the Development Framework Plan.

3.21 Permission is sought for this alternative layout and should be reflected in any planning permission for instance in a condition indicating that development should be carried out in accordance with the development framework plan including the provisions within the development framework plan for an “alternative South Marston Layout to comprise provision for primary school site and replacement residential development”.

Access and Movement

3.22 The Transport Assessment (TA) is updated by this submission, and is provided at **Appendix 7a** of the Environmental Statement Further Information Report, (April 2016).

3.23 The Revised TA reflects significant collaborative work undertaken by Brookbanks Consulting and Swindon Borough Council (SBC) and the Highways Agency (HA) to reach agreement on highways matters, including trip generation forecasts, traffic modelling methodology and results, and the production of a package of mitigation measures to minimise the transport impacts of the development proposals. This robust evidence base underpins the Revised TA submitted in support of the application.

3.24 A key element of the Transport Assessment is the consideration of potential cumulative impacts on traffic that result not only from committed schemes, but also allocations to include the wider development of the New Eastern Villages. The traffic scenarios modelled were agreed through discussions with SBC and HA. These were identified as Phase 1A which included a potential expansion of the foodstore south of the A420 and provision of employment land to the south in accordance with the proposals in the emerging Swindon Local Plan. The second additional test, identified as Phase 2, assessed the full New Eastern Villages development (namely 8,000 dwellings) as per the emerging Local Plan allocation. A robust approach has therefore been adopted which ensures that the application proposals take full account of future development in the area in the short and longer term

3.25 The potential impacts on the highway network have been tested through the Swindon area wide SATURN traffic model together with the A419 / A420 PARAMICS traffic model, as agreed with Swindon Borough Council and the Highways Agency and set out in the accompanying TA.

3.26 The delivery of a residential development has the potential to increase traffic levels in the local road network and as such a clear transport strategy has been developed including specific junction interventions. For the NEV as a whole this will require the phased implementation of transport measures in parallel with the progressive development of the NEV.

3.27 The Revised TA identifies a range of offsite interventions that will be delivered by the development. This includes:

- **A420 / Old Vicarage Lane:** Shuttle signals to operate at the railway underbridge on Old Vicarage Lane linked to a signal controlled junction between Old Vicarage Lane and A420, together with a change of priorities leading into the development on the eastern side of Old Vicarage Lane with Old Vicarage Lane becoming the minor road; (drawing 1335-HL-57 Rev G – see revised TA)

- **New Access onto A420:** New signal controlled junction at the east end of phase one to provide access from the A420; (drawing 1335-HL-10 Rev C – see revised TA)

- **Police HQ Signals:** Retain the existing layout on A420, with minor changes to the signal timings. Consider an option to open the secondary exit point onto Thornhill Road, should the Police desire;

- **Gablecross Roundabout:** Conversion to a signalled crossroads (this is a revised intervention from the original proposed intervention which was localised widening on approach arms) (drawing 1335-HL-14 Rev A –see revised TA)

- **White Hart interchange:** Signalisation off several arms of the existing interchange layout; (drawing 1335-HL-51 Rev E - see revised TA)

- **Merlin Way / A419 slip road roundabout:** Signalisation of several arms of the existing interchange layout (subsequent traffic modelling of the revised development layout together with anticipated traffic growth for the Swindon Borough raised that mitigation measures were necessary at this junction location). (drawing 1335-HL-52 Rev A – see revised TA)

3.28 This represents a comprehensive package of interventions delivered through, and arising from, the development that demonstrates that delivery of this Phase I element of the growth does not prejudice the delivery of the subsequent phases.

3.29 However, the HE and SBC have also identified potential alternative schemes at several of these locations. Through the subsequent discussions with the Regulatory Bodies, a contribution towards these alternative schemes could be agreed, as opposed to the completion of the BCL identified schemes.

3.30 The TA confirms that the results of the modelling have not highlighted a location, nor impact, that cannot be appropriately mitigated. The proposals are underpinned by a deliverable transport strategy, supported by the work undertaken on behalf of both

the Borough Council as local highway authority and the Highways Agency as authority for the A419 and M4, to secure the early implementation of the Proposed Development without requiring, or in any way fettering, the progressive implementation of the wider transport strategy for the NEV as a whole.

Access Strategy for Application Proposals

3.31 The access strategy for the for the application proposals remains generally as set out in the Planning Statement (October 2013) with minor refinements to access designs.

3.32 The intention of the access strategy for the Proposed Development remains, that is to maintain the A420 as the primary east-west corridor and providing direct and ready connection to the A420 at Thornhill Road, Old Vicarage Lane, and from the new access towards the eastern end of the development thereby minimising the traffic routing through the proposed development and the existing South Marston village.

3.33 The selection of a roundabout junction on Thornhill Road provides a direct link into the development to reduce any need to travel through South Marston. The access into the development from Old Vicarage Lane includes the alteration of the priority such that traffic is discouraged from South Marston.

3.34 Consideration has also been given to the wider objectives in relation to transport set out in the Draft South Marston SPD. The objective of a 20 MPH speed limit throughout the village is supported in principle and in practice through the subsequent design of most streets within the development areas in accordance with such speeds. Rowborough and Nightingale Lanes are retained.

3.35 The traffic modelling work confirms that traffic generated from within Rowborough will employ the access(es) to the A420 to the south rather than find its way to Thornhill Road and Gablecross roundabout via Thornhill Road. The proposed link between Old Vicarage Lane and Thornhill Road is therefore demonstrated not to form a southern bypass role for the South Marston area. Indeed the link has been designed with Manual for Streets philosophy in mind and will be experienced as a street within the landscape setting. The modelling further confirms that with the improvements proposed, the highway junctions in the immediate environs of the development will operate satisfactorily following development.

3.36 More generally, the likely impact of the Proposed Development on traffic conditions in South Marston, including at Pound Corner, has been fully appraised. This assessment indicates that the Proposed Development would not materially increase traffic flows through the village or impede access to the wider road network for existing residents, taking into account the improvement proposed to junctions on the A420 and for the reasons set out above. The aspiration in Policy RA3 of the emerging Local Plan to secure traffic management measures in the expanded and existing village (for instance at Pound Corner) are also capable of being supported through the application proposals.

3.37 To provide access to Rowborough area, the horizontal alignment of Old Vicarage Lane towards its current junction with the A420 will be amended to provide direct priority access into the western half of the site. This will result in the old route of Old Vicarage Lane giving way to the main line flow, which will now be towards the Rowborough development in the east. This will have the benefit of reducing any desire line towards South Marston and will give access the initial housing at Rowborough and reinforcing the primary desire immediately to the A420.

3.38 A second access to the Rowborough phases of development is taken from the eastern side of Old Vicarage Lane via a roundabout. This second access would offer no benefits over traffic using the primary route onto Old Vicarage Lane down to the A420 route, which has been established as the quicker journey time, but gives more sustainable Public Transport routes to Rowborough.

3.39 The revised TA demonstrates that two points of access onto Old Vicarage Lane will be desirable and acceptable and not lead to rat running between Old Vicarage Lane and Thornhill Road in South Marston and will not have a detrimental effect on the use of the link road through the south Marston part of the development. Provision of two access points will have substantial benefits in terms of the access and movement strategy including allowing the delivery of a true public transport loop (which employs the shortest route and avoids duplicated sections of road on the route) and hence will result in much enhanced public transport provision. Equally, provision of enhanced foot and cycle connections along less trafficked road or roads will also contribute strongly to encouraging sustainable modes including for those making use of complementary services and facilities in South Marston and Rowborough. Additionally the management of the construction process and emergency access provision are important benefits.

3.40 A further access point to Rowborough is also to be delivered to the east of the development, on the A420, via a signal controlled priority junction. This will then allow the completion of the development

Sustainable Transport

3.41 Details in relation to sustainable transport as set out in the Planning Statement (October 2013) remain applicable.

Travel Plan

3.42 The Travel Plan Framework (TPF) is updated by this submission, and is provided at **Appendix 7b** of the Environmental Statement Further Information submission. The Revised TPF reflects significant collaborative work undertaken by Brookbanks Consulting and Swindon Borough Council (SBC) and provides measures that encourage more sustainable patterns of movement and travel by working in partnership with local schools and businesses.

Footpaths and Cycleways

3.43 Details in relation to footpaths and cycleways as set out in the Planning Statement (October 2013) remain applicable. The application proposals make provision for an appropriate and effective movement network to serve the proposed development – in particular in relation to the expanded South Marston village.

3.44 The indicative strategic foot/cycle network presented in the Illustrative Masterplan and the Access and Movement Plan (presented as part of the Revised DAS), further describe the comprehensive network of streets proposed and show additional potential connections between adjacent development sites, to include Mercure Hotel and Thornhill Industrial Estate, and demonstrate that the proposals provide a connected network of permeable streets and footpaths, in accordance with Local Plan Policies DE1 and RA3.

Parking

3.45 Parking is expected to be provided taking into account the Council's adopted parking standards. The parking provided will take account of such standards although the final provision will reflect the mix of units and the design principles within each character area.

Green Infrastructure and Public Open Space

3.46 Details in relation to Green Infrastructure and Open Space as set out in the Planning Statement (October 2013) generally remain applicable. The proposed development provides a considerable amount of green space for play, recreation and walking/cycling and accords with the open space requirements as set out at appendix 3 of the Local Plan. The open space assessment is updated from that presented in the original Planning Statement, to reflect the amendments made to the masterplan and the minor resultant changes to the categories of open space.

Open Space Assessment

3.47 The figures are based on the housing numbers proposed as part of the outline application (1880 for Rowborough and 500 for South Marston) This equates to a population of 4,418 for Rowborough and 1,175 for South Marston (total 5,593).

Category of Open Space	Swindon Borough Plan 2026	Requirements	Proposed
Open Space (overall)	3.2 ha / 1000 population	17.9 ha *South Marston: 3.8 ha* *Rowborough: 14.1 ha*	65 ha approx *South Marston: 27 ha* *Rowborough: 38 ha*
Children / Teen Play Areas	0.3 Ha /1000 population (to include NEAP, LEAP, and LLA (Local Landscape Area))	1.7 ha *South Marston: 0.4 ha* *Rowborough: 1.3 ha*	2.1 ha *South Marston: 0.73ha* *Rowborough: 1.38 ha*
Outdoor Sports Facilities	1.6 Hectares /1000 population (of which 1.2 Hectares /1000 population are formal pitches)	8.9 ha (6.7 ha formal pitches) *South Marston: 1.9 ha (1.4 ha formal pitches)* *Rowborough: 7.1 ha (5.08 ha formal pitches)*	9.9 ha *South Marston: 2.9 ha* *Rowborough: 7.0 ha*
General Recreation Areas	1 ha / 1000 population (of which 0.5 ha/1000 should be suitable for	5.6 ha (2.8 ha children's informal play) *South Marston:*	53 ha approx *South Marston: 24 ha* *Rowborough:*

	children's informal play)	*1.2 ha (0.6 ha children's informal play)* *Rowborough:* *4.4 ha (2.2 ha children's informal play)*	*29 ha*
Allotments	0.3 ha / 1000 population	1.7 ha *South Marston:* *0.4 ha* *Rowborough:* *1.3 ha*	1.8 ha *South Marston:* *0.4* *Rowborough:* *1.4 ha*

GI Strategy

3.48 The provision and approach to Green Infrastructure (GI) is in accordance with 'A Green Infrastructure Strategy for Swindon 2010-2026' and the initiatives of the Great Western Community Forest. It also accords with established guidance from Natural England in terms of accessibility to greenspace for new communities and delivering multifunctional landscapes.

3.49 The Green Infrastructure Framework – Guiding Principles, has been amended to reflect the amendments to the masterplan, and is provided at appendix **11c** of the ES Further Information Document. The GI Framework demonstrates provision of extensive GI which extends over some 65ha or over 40% of the site to offer a multifunctional landscape habitat for play, formal and informal recreation, amenity, planting, biodiversity and drainage.

Connections to and Relationship to the NEV and Swindon Town Centre

3.50 Details in relation to connections to relationship to NEV and Swindon Town Centre as set out in the Planning Statement (October 2013) remain applicable.

Sustainable Design and Renewable Energy

3.51 Sustainability has been an important part of the planning application proposals. The site has been designed to give people the opportunity to choose a healthier, more sustainable lifestyle; for instance reducing the need to travel, establishing sustainable drainage systems and creating a place that engenders social connections.

3.52 The Applicants are committed to delivering a sustainable development, a component of which will be the level of sustainable design and energy conservation incorporated into the scheme.

Drainage

3.53 Details in relation to drainage as set out in the Planning Statement (October 2013) remain applicable.

3.54 A revised FRA forms part of the submission document, presented at **Appendix 14a** of the Environmental Statement Further Information submission.

Demolition

3.55 Details in relation to demolition as set out in the Planning Statement (October 2013) remain applicable.

4.0 PLANNING POLICY CONTEXT

National Planning Policy

National Planning Policy Framework (2012)

4.1 The Government's commitment to delivery of sustainable development is now enshrined in the Localism Act and National Planning Policy Framework. Local Planning Authorities are duty bound to prepare positive plans to encourage sustainable development that meets the area's need for homes, jobs and open space.

4.2 The National Planning Policy Framework provides a clear decision taking framework, setting out in paragraph 14 the approach to the determination of planning applications the centrepiece of which is the Presumption in Favour of Sustainable Development. Local Planning Authorities should positively seek opportunities to meet the development needs of their area and approve development proposals that accord with the development plan without delay.

4.3 It is the policies in the entire NPPF, taken collectively which constitute the definition of sustainable development. The proposed development at South Marston and Rowborough accords with this definition by establishing a development that supports employment, innovation and growth, will establish a vibrant and healthy community through a mix of housing and facilities that reflect the community's need and by protecting and enhancing the natural environment through integration of existing habitats into the wider green infrastructure network and through the use of renewable energy technologies.

4.4 The NPPF provides 12 core planning principles that should underpin plan making and decision taking. Those of relevance to the South Marston and Rowborough proposals are summarised below, alongside a commentary of the development's conformity with them.

Core Planning Principle	Conformity of Scheme
Plan-led system with up to date local plans setting out a positive vision	The site is allocated for development within the adopted Local Plan. The application scheme delivers a major residential led urban extension in accordance with the Local Policy NC3

	and RA3.
Sustainable economic development to deliver homes, businesses, infrastructure and local places that are needed, based on an assessment of local need.	The potential benefits of development east of Swindon, comprising an expansion of South Marston and development at Rowborough, are recognised by the Local Plan and its evidence base. The scheme has the potential to deliver a substantial proportion of Swindon's housing requirement supported by local community facilities. As such it will also have a major positive effect on economic development and housing objectives within the Borough.
High quality design and amenity	The applicant is committed to the creation of a desirable new community that takes account of South Marston's vernacular and makes use of local building materials as appropriate and to create walkable residential neighbourhoods around distinct character areas.
Take account of the different roles and character of different areas including promoting the vitality of main urban areas and recognising the intrinsic character and beauty of the countryside.	The proposals aim to complement and not compete with the varied retail and service offer within Swindon town centre. The new population will support town centre facilities and the new offer at the NEV district centre. The development layout and structure as a whole has been influenced by the landscape context and topographical features of the site. The arrangement of land parcels their associated uses, form and type of open space and route ways take account of the established physical features within the site.
Support the transition to a low carbon future.	The scheme takes full account of potential flood risk though the provision

	of a series of sustainable urban drainage systems and will incorporate a range of measures to support the principles of sustainable development, including to maximise the potential for walking, cycling and public transport and thereby to minimise the development's carbon footprint.
Contribute to conserving and enhancing the natural environment and reducing pollution	The site is allocated in the Local Plan by virtue of its proximity and relationship with Swindon. There are no high level constraints to the development of the site. The development will respect the local topography and enhance the natural environment where possible.
Promote mixed use developments	The best use will be made of the land available, through the provision of a mix of housing, local retail and employment uses, education and community uses in a sustainable urban extension.
Manage growth to make the fullest use of sustainable modes of transport and focus development in sustainable locations	The scheme will encourage the use of sustainable transport in the form of public transport, walking and cycling through the provision of additional services and direct routes to the centre. The site is immediately contiguous with the existing urban area and benefits from good connections to the wider NEV development. The Site will also be well connected to central services and facilities.
Improve health, social and cultural well being and delivery community and cultural facilities to serve local need.	A new community will be created east of Swindon that will be well served by a range of health and community facilities both within the NEV District centre and the centre(s) proposed at Rowborough. These could include a health centre, sheltered housing and community

	facilities. The proposed primary school at Rowborough and the expanded school at South Marston will be important community focuses.

4.5 The NPPF details specific policy relating to 13 key themes. The planning statement (October 2013) provides an assessment of the development proposals in relation to the relevant key themes. This assessment remains applicable to the amended scheme and therefore not repeated here.

National Planning Practice Guidance

4.6 The National Planning Practice Guidance (NPPG) was launched in March 2014 and is a web-based resource which is considered a 'live' document and updated or amended when required. The on line resource is intended to amplify and reinforce the policies within the NPPF.

4.7 The following paragraphs set out some of the areas of guidance relevant to the application.

4.8 ID 42-006-20140306 of the NPPG identifies the benefits of preparing a Transport Assessment. It states:

"Travel Plans, Transport Assessments and Statements can positively contribute to:

- *encouraging sustainable travel;*
- *lessening traffic generation and its detrimental impacts;*
- *reducing carbon emissions and climate impacts;*
- *creating accessible, connected, inclusive communities;*
- *improving health outcomes and quality of life;*
- *improving road safety; and*
- *reducing the need for new development to increase existing road capacity or provide new roads"*

4.9 ID 26-006-20140306 of the NPPG provides further information on design in the planning process and states:

"Design impacts on how people interact with places. Although design is only part of the planning process it can affect a range of economic, social and environmental objectives beyond the requirement for good design in its own right. Planning policies and decisions should seek to ensure the physical environment supports these objectives. The following issues should be considered:

- *local character (including landscape setting);*

- *safe, connected and efficient streets;*
- *a network of greenspaces (including parks) and public places;*
- *crime prevention;*
- *security measures;*
- *access and inclusion;*
- *efficient use of natural resources; and*
- *cohesive & vibrant neighbourhoods."*

4.10 ID 53-002-20140306 of the NPPG explains the links between health and planning, that development should avoid adverse impacts on human health, create opportunities for people to make healthy choices, promote active travel and physical activity, and promote access to high quality open spaces and opportunities for play, sport and recreation.

4.11 ID 7-030-20140306 of the NPPG identifies the objectives of a flood risk assessment. It states:

"The objectives of a site-specific flood risk assessment are to establish:

- *whether a proposed development is likely to be affected by current or future flooding from any source;*
- *whether it will increase flood risk elsewhere;*
- *whether the measures proposed to deal with these effects and risks are appropriate;*
- *the evidence for the local planning authority to apply (if necessary) the Sequential Test, and;*
- *whether the development will be safe and pass the Exception Test, if applicable."*

4.12 ID 7-068-20140306 of the NPPG provides a checklist of matters to be addressed in a flood risk assessment.

4.13 ID 8-016-20140306 of the NPPG explains how biodiversity should be taken into account in preparing a planning application ID 8-018-20140306 of the NPPG identifies the issues that should be considered when seeking to avoid, mitigate or compensate for significant harm to biodiversity and that green infrastructure can help to mitigate any significant harm to biodiversity (ID 8-019-20140306).

Local Policy

Swindon Borough Local Plan 2026 (2015)

4.14 The Swindon Borough Local Plan (2026) provides the policy framework to deliver sustainable growth in Swindon to 2026 and beyond. The Local Plan was adopted in March 2015.

4.15 The Swindon Local Plan 2026 sets out three high level strategic development priorities, which guide the Local Plan's Strategic Objectives, these are:

- Deliver growth that is balanced and sustainable, and provide the necessary infrastructure, while addressing impacts of climate change;
- Deliver regeneration in a way that meets the needs of Swindon's future, but conserves and enhances the best of the past; and
- Recognise the important role of green infrastructure to enhance the quality of life for existing and future residents.

4.16 Policy SD1 sets out a clear statement of the presumption in favour of sustainable development, reflecting the position taken by the NPPF, as the overarching principle that governs all development proposals, which include: high quality design, promotion of health, safe and inclusive communities; respect, conservation and enhancement of the natural, built and historic environments; provision of accessibility for walking, cycling and/or public transport and use of land and resources in an efficient and sustainable way.

4.17 The Spatial Strategy for Swindon is set out in Policy SD2, defining the quantum of growth within the Borough over the plan period up to 2026, of 22,000 dwellings and 119.5 hectares of employment (B-class) land. The policy allocates a number of strategic urban extensions to the east of Swindon, including the NEV, to accommodate about 6,000 dwellings and 40 hectares of employment, Rowborough, to accommodate about 1,500 dwellings and South Marston village to accommodate 500 greenfield dwellings.

4.18 Policy SD3 provides a framework within which the principle of sustainable development can be followed throughout the development management process, and encouraging a partnership approach between the LPA, developers, stakeholders and service providers.

4.19 Policy NC3 provides the policy basis for a mixed-use development on land east of the A419, known as the New Eastern Villages – including Rowborough and South

Marston Village Expansion, comprising a series of new district villages and an expanded South Marston Village. Specific provisions include delivery of: approximately 8,000 dwellings; 40 hectares of B class employment land; 12,000 sqm of retail floorspace to be distributed across the District Centre and a network of Local Centres and within the expanded South Marston; a minimum of 8 forms of entry of secondary and primary provision; health care facility; sports and leisure facilities; community facilities; sustainable transport links to include a number of highway improvements; green infrastructure network; and safeguarded land for a fire station.

4.20 Policy RA3 also provides a policy basis for the expansion of South Marston Village, identifying a number of site specific development principles to ensure new development respects the character of the existing village and prevents coalescence with Swindon and the other proposed New Eastern villages. Specific principles include housing at an average density of 30 dwellings per hectare and affordable housing at no more than 20%; community, recreation facilities and retail provision of an appropriate scale, as part of the village centre; an extended recreation ground; protection of historical landscape features, archaeological assets and existing green infrastructure; new road connection between Thornhill Road and Old Vicarage Lane; provision of traffic management and sustainable transport measures to minimise traffic in the existing settlements.

4.21 The Inspector in his Report to the Swindon Local Plan 2026 referred to modifications required to amend the level of detail as presented in the draft Supplementary Planning Documents (SPDs), “Eastern Villages” and “South Marston” both dated June 2013, particularly with regard to development management policies, site allocations and infrastructure contributions, detail which was considered should be set out in the Local Plan and not deferred to SPD.

4.22 In order to make the Local Plan sound, the Inspector required deletion of references to both the *Eastern Villages Draft Supplementary Planning Document (2013)* and the *South Marston Draft Supplementary Planning Document (2013)* within the Local Plan. These two documents are not currently being progressed.

4.23 This planning application seeks outline planning permission for the strategic urban extension, which is in conformity with the site specific policies NC3 and RA3.

4.24 Specifically the application proposals:

- Deliver a first phase of development of the NEV, of a scale and density that is consistent with the local plan policies;

- Deliver a first phase of transport improvements, or contributions to the HE/SBC transport improvements, consistent with the transport strategy for the whole of the NEV;
- Include an extensive green infrastructure network in their own right that is designed to be entirely complementary to subsequent GI proposals for those parts of the NEV south of the A420 to be brought forward in due course;
- Include localised provision for retail and employment uses consistent with the objectives for Rowborough and complementary to the policy focus on the District centre and the employment areas south of the A420;
- Provides certainty regarding the delivery of new primary provision at the NEV and proposals;
- Include proposals that ensure that there is no increase in flood risk and full account is taken of the biodiversity and historic character of the site;
- Support the aspirations for a community focus at the heart of the expanded South Marston including the provision of an extended recreation ground to include the field to the south west of the existing recreation ground.

4.25 The provision for some 1,880 dwellings at Rowborough is consistent with the expectation in Policy NC3 that “about 1500 dwellings” be provided at Rowborough, the “about” being a recognition that actual level of provision should reflect the outcome of a detailed master planning process that has now taken place. The provision of 380 “additional” dwellings is entirely consistent with the design principles set out in the planning policy and accords for instance with the provisions in relation to density and open space. It has been fully assessed in the Environmental Statement (October 2013), and the *Environmental Statement Further Information Report* (April 2016) that accompanies the application and been demonstrated to result in no additional significant detrimental effects.

4.26 The provision of 500 dwellings in South Marston is consistent with policy expectation in Policy NC3 that “500 dwellings” be provided at South Marston on greenfield sites as part of an expanded village.

4.27 The following general policies are relevant to the development at Rowborough and South Marston.

Policy DE1: High Quality Design; Policy DE2: Sustainable Construction

Policy DE1 requires standards of design which respond to sustainable development and place making principles. Proposals are assessed against context and character;

layout, form and function; amenity and quality of the public realm. Policy DE 2 sets out a requirement for the adoption of sustainable methods of construction through the layout and design of the site and orientation and design of buildings.

4.28 The Design and Access Statement outlines how the development has been designed to accord with these criteria and will achieve high standards of design.

Policy HA1: Mix, Types and Density

Policy HA1 sets out a requirement for housing developments to be design-led, ensuring that densities, house types and sizes respect the character of the surrounding area and ensuring a good mix of housing to meet local needs as identified within the Swindon Strategic Housing Market Assessment and in line with the Swindon Borough Housing Strategy.

Policy HA2: Affordable Housing

Policy HA2 sets a requirement for developments of 15 homes or more, or on sites larger than 0.5 hectares and subject to economic viability assessment to provide an affordable housing target of 30% affordable homes on site, and where it can be robustly demonstrated as appropriate, a proportionate contribution to be provided towards affordable homes off-site where on-site provision is not suitable. Where affordable homes are provided on site, they should be integrated within the design and layout of a development with a mix and tenure that reflects current need. Separately 20% is sought at South Marston.

4.29 The application proposals accommodate up to 2,380 new dwellings as part of the wider allocation for the Swindon New Eastern Villages, some 1,880 dwellings at Rowborough and some 500 dwellings at South Marston. Provision will be made for affordable housing as part of the proposals. Whilst this application is submitted in outline form only and therefore does not specify the exact mix of dwellings sizes and tenures, a proportion and tenure mix of affordable housing will be negotiated as part of the S106 agreement. The mix of dwellings will be fixed through subsequent reserved matters pursuant to any outline planning permission. The emphasis will include family housing but other smaller units will also be provided, including the potential for an element of sheltered housing.

4.30 The proposals will include up to 30% affordable housing at Rowborough and up to 20% affordable housing at South Marston. The amount and mix of affordable housing will be the subject of negotiation and discussions with SBC and agreed in

the light of the wider requirement for infrastructure delivery and other planning and design objectives.

Policy EC2: Employment Land and Premises

4.31 Local Plan Policy EC2 d. refers to employment land and uses and requires consideration of a sequential approach to site selection for proposals for office development (B1(a)) over 1,000sqm gross floorspace. Directing such proposals to Swindon's Central Area, as a priority, and to New Eastern Villages as a second tier preference.

4.32 The proposals seek to provide "up to" 1,500sqm of small scale employment (class B1) uses as part of the mixed use areas at Rowborough. This will provide an element of local employment to serve the new community and offer employment opportunities close to new homes. Its aim is to support the sustainable objectives of the community. It is a maxima with a smaller level of provision a probable outcome of the reserved matters submissions.

4.33 Given the relatively small scale of the employment provision proposed, it is not considered that this development would be suitable to accommodate or attract large floor plate office buildings and as such would not undermine Key Employment Areas nor Central Swindon, nor locations in the District Centre at the New Eastern Villages. Indeed the intention is drawn on the experience of other new communities whereby small scale premises are often sought locally to allow the progression of small scale business activities often from activities based at home. Any premises available in the Town Centre in particular but also in the District centre would not meet this specific need or requirement.

4.34 Instead the development is likely to hold an attraction in serving the local market, particularly the needs of the proposed Rowborough and South Marston new communities, and could include small-start up businesses. Small –scale employment (B1) would represent a type of use that would sit comfortably within the neighbourhood hub and mixed use centre, that may also incorporate and element of housing. At the most it would be a de minimis complementary provision to that in the town centre and District centre. The scale of provision made, and of any individual units could, if appropriate, be conditioned accordingly and to reflect the assessment set out above and to ensure that this is the case.

4.35 This approach is consistent with supportive text to Local Plan Policy NC3 (development at the NEV) which seeks the creation of sustainable well-design places where people want to work, live and spend time (para 5.52) and promotes small-scale office premises within local centres, to support additional employment within the NEV district centre (para 5.62). They are consistent with the guidance in EC2d that such provision should be well served by public transport – being located on a public transport route.

Policy EC3: The Role of Centres and Main Town Centre Uses

4.36 Local Plan Policy EC3 refers to retail uses and the Role of Centres and requires consideration of a sequential approach to site selection for proposals for retail floorspace outside the Central Area.

4.37 The proposals seek to provide "up to" 1,500sqm of retail (Use Class A1) to be provided as part of the mixed use areas at Rowborough. It is a maxima with a smaller level of provision a probable outcome of the reserved matters submissions but is of a limited scale anticipated to serve the day-to-day needs of the new community at Rowborough and South Marston and to support the sustainable objectives of the community. While the number of households anticipated at South Marston and Rowborough approaches 30% of the households in the NEV as a whole, even at its maximum the level of retail provision would be just 12% of the provision allowed form in a variety of locations in the NEV by Policy NC3.

4.38 Given the relatively small scale of the retail provision proposed, it would provide a focus for day-to-day facilities for the local community, allowing for local 'top-up' convenience shopping and opportunities for social interaction, a necessary element of delivering a sustainable new community. The location is well served by public transport in the local centres.

4.39 This approach is consistent with supportive text to Local Plan Policy NC3 (development at the NEV) which seeks the creation of sustainable well-design places where people want to work, live and spend time (para 5.52) and promotes small groups of shops within local centres, that meet the day to day shopping needs of the community and which are easily accessible by walking and cycling (para 5.66).

4.40 In particular NC3 allows for some 12,000 sq metres of retail provision in the District Centre and in local centres. The range of local provision in local centres has been

assessed therefore as not impacting upon retail provision in higher level centres such as the District Centre or Swindon town centre. This arises from the very limited and complementary scale of provision but also the limited size of units which substantially generate much more limited turnover. The scale of provision made, and of any individual units could, if appropriate, be conditioned accordingly and to reflect the assessment set out above and thereby ensure that the role of such retail is complementary to retail provision in the district and town centre.

4.41 Residents would still turn to Swindon Town Centre and/or the proposed NEV District Centre for comparison shopping, as such these proposals are not considered to present any adverse impact on Swindon Town Centre or the hierarchy of centres.

Policy TR1: Sustainable Transport Networks; Policy TR2: Transport and Development.

Policy TR1 supports a reliable and efficient transport network; improvements to safety, security and healthy lifestyles; equality of opportunity to access services and facilities and reduction of emissions. Policy TR2 requires new development to be located and designed to reduce the need to travel and encourage the use of sustainable transport alternatives. Access must be appropriate to the scale, type and location without detriment to highway safety and local amenity and retain or where not possible replace existing rights of way. Policy TR2 requires submission of Transport Assessments to support development that is likely to have a significant transport and related environmental impact. The policy also requires parking provision to include secure cycle and motorcycle parking in line with the Council's adopted parking standards.

4.42 As outlined earlier in this statement, the proposed development has adopted a positive approach to sustainable travel and will ensure that the future population has a genuine choice of sustainable modes of transport. The TA that accompanies the application demonstrates that subject to mitigation measures, the development will not generate any significant transport impacts.

Policy IN1: Infrastructure Provision

Policy IN1 sets out a requirement for development to address and provide for the new infrastructure made necessary by development.

4.43 The application proposals accord with this requirement through delivery of the following:

- highway enhancements;
- contributions to off site junction improvements;
- a proportion of affordable housing;
- a primary school;
- land and contributions as appropriate for a sports provision and community facilities; and
- green infrastructure including formal pitches, informal open space and landscape areas and children's play spaces; and
- sustainable urban drainage systems including balancing ponds and drainage channels.

Policy CM1: Education

Policy CM1 sets out a requirement to address the school place provision to accommodate the levels of growth as set out in the Local Plan.

4.44 The proposals include a site of approximately 2.2 hectares to accommodate a two form entry (420-place) school at Rowborough. A one form entry (210 place) extension to the existing school at South Marston has been envisaged and is planned. The amendments to the application now include provision for an additional primary school to be provided within the South Marston part of the development in the specific eventuality that the expansion of the existing South Marston Primary School does not proceed.

4.45 This approach ensures the development will adequately cater for the number of primary school children it generates, with potential sufficient surplus capacity to help reduce pressure on existing schools in north/east Swindon and surrounding areas.

CM2: Active, Healthy and Safe Lifestyles

Policy CM2 promotes active, healthy and safe lifestyles by increasing opportunities to walk and cycle and encouraging more sustainable travel choices, increasing access to green spaces, designing out crime and designing in health and provision of open space, leisure and recreation facilities, and community facilities.

4.46 The development is laid out as series of connected walkable residential neighbourhoods around distinct character areas. Each neighbourhood benefits from access to key areas of formal and informal open space. By introducing a wide mix of new uses, the site will be benefit from extended use during the day. This will increase indirect surveillance which will help reduce existing and perceived levels of crime. As part of the detailed design it is envisaged that the development will make use of well designed security features, including active frontages and overlooking of open space. The detailed design through subsequent reserved matters will address Secure by Design principles.

Policy CM3: Integrating Facilities and Delivering Services

Policy CM3 promotes local and integrated service delivery through flexible multi-use buildings in public and community ownership, co-location of sports centres and playing pitches with schools, including an agreement to use schools and other public buildings for community use. Key aspirations for both schools is that their design and management encourage their use as community facilities to be used by the local community 'out of school' hours for leisure/ social activities.

4.47 The application provides for and will seek to deliver a Neighbourhood "hub" located adjacent to the primary school to generate a focus of activity for Rowborough, accessibly located on the main street to include appropriate space for bus stops, parking and cycle storage. This central location will maximise community use and interaction.

4.48 The playing fields at South Marston are located at the northern edge of the new development, at the heart of the expanded South Marston, adjacent to the existing primary school and its recreation ground.

4.49 Throughout the application process HHT have attended various planning and design workshops and discussions to explore the options for the expansion of the village centre at South Marston, with regards to the community facilities to be contained in the village centre the range and combination of facilities, as well as their location. A range of facilities for an expanded village centre have been identified by the Parish Council. Provision for a community building and/ or facilities on land owned by the Parish Council adjacent to (and not within), the application site. The application proposals provide for such provision within the application site should this be the most appropriate means to deliver such facilities. Indeed, the precise location, range and combination of community facilities to be contained within the village centre, and

the extent to which they are generated by the expansion of South Marston remains to be finalised.

Policy EN1: Green Infrastructure Network.

Policy EN1 seeks to protect and enhance green infrastructure and assets in accordance with those identified at Appendix 4 of the Local Plan and provides for the protection and integration of visually or ecologically important existing trees, hedges and woodlands. Development should also design in green infrastructure with existing green corridors identified on the Proposals Maps to maximise connections and multifunctionality.

4.50 A generous landscape and open space Green Infrastructure Framework is a key part of the proposals for South Marston and Rowborough. The *Green Infrastructure Strategy-Guiding Principles*, which supports the application illustrates some 65ha or over 40% of the site is included as GI with retained habitats (valued hedges, mature trees, brook, ponds, rights of way), habitat creation (broadleaved woodland, hedgerows, wetland habitats), and accessible greenspace (sports pitches, equipped play provision, informal recreation, walking and cycling routes). This framework provides a clear separation from South Marston and promotes linkages to Nightingale Wood to the east.

Policy EN3: Open Space.

Policy EN3 requires development to provide or contribute towards public open space at a standard of 3.2 Ha per 1000 of the population.

4.51 The development provides a considerable amount of green space for play, recreation and walking/cycling of a type and distribution in accordance with, and indeed in excess of the standards as set out in Appendix 3 of the draft Local Plan.

Policy EN4: Biodiversity and Geodiversity

Policy EN4 requires development to avoid direct and indirect negative impacts upon biodiversity and geodiversity sites.

4.52 The application site contains no designated areas of Biodiversity and Geodiversity interest. The proposed layout has taken into account habitats and features of value

at an early stage and seeks to retain and enhance ecological features of value, as far as practicable, through the Green Infrastructure (GI) framework.

Policy EN5: Landscape Character and Historic Landscape

Policy EN5 requires the intrinsic character, diversity and local distinctiveness of landscape to be protected, conserved and enhanced and designed sympathetically to the surrounding environment.

4.53 The Design and Access Statement demonstrates the evolution of the proposals, the development layout and structure as a whole has been influenced by the landscape context and topographical features of the site. A detailed landscape and visual impact assessment forms part of the Environmental Statement and demonstrates that the scheme has been designed to fit sensitively within its wider landscape.

Policy EN6: Flood Risk

Policy EN6 requires the management of flood risk through directing new development to areas with the lowest probability of flooding in accordance with the Sequential Test as defined within the NPPF; ensuring that new development addresses the effective management of flood risk; and for development to incorporate sustainable drainage systems.

4.54 A revised FRA forms part of the submission document, presented at Appendix 14a of the Environmental Statement Further Information Document, April 2016. The FRA concludes that the application site is suitable for the proposed development in the context of the NPPF sequential test, and no built development other than essential infrastructure is located within the River Cole and/or South Marston Brook floodplain.

4.55 The drainage strategy (within the FRA) identifies no prohibitive engineering constraints in developing the proposed site for residential use and refers to a range of sustainable urban drainage solutions will be incorporated into both the built and green environments. The proposals will result in a substantive improvement in existing runoff rates from the site.

Policy EN10: Historic Environment & Heritage Assets

Policy EN10 requires the setting and significance of historic environment assets to be sustained and enhanced.

4.56 The potential effects on heritage assets have been considered at the masterplanning stage. The layout of the development is sympathetic to the setting of listed buildings referred to at paragraph 2.8, and seeks to negate any impact that would materially compromise their significance.

4.57 The Proposed Development has been designed to enable the preservation *in situ* of the majority of the area interpreted as a late prehistoric/Roman settlement between Manor and South Marston Farms. Mitigation of impacts on such non-designated heritage assets is proposed where necessary.

4.58 In summary the application proposals are in conformity with the Local Plan policies, both relating to the site itself, those being Policy NC3 and RA3 and those that apply to development more generally, as referred to above.

Other Local Supplementary Guidance

4.59 The SPG's previously referred to supported Swindon Local Plan (2011) policies. This document has now been superseded by the Swindon Borough Plan 2026 and as such are not material to the application.

Emerging Local Planning Policy

Draft Neighbourhood Plan for South Marston, Submission Consultation Draft (December 2015)

4.60 The Swindon Local Plan sets out the strategic policy context for the New Eastern Villages including those elements at South Marston and Rowborough.

4.61 An application for the designation of a Neighbourhood Plan Area for South Marston Neighbourhood Plan was submitted to Swindon Borough Council and was confirmed on 4 June 2015. The Plan area includes part of the application site that includes development at South Marston, and north of the railway line and west of the South Marston Brook.

4.62 The Submission Neighbourhood Plan was submitted to Swindon Borough Council on 12 January 2016 has been subject of consultation and representations and will be subject to an independent examination.

4.63 The draft Neighbourhood Plan sets out a vision for the whole of the Neighbourhood Plan area which includes the existing village of South Marston as well as the western part of the application site. A vision of an expanded village with sense of community and design that builds on existing character is portrayed. Policies envisage a central village area to include the field to the south west of the current recreation ground, a common set of design principles, movement and permeability, access onto the A420, green infrastructure as well as policies relating to broadband, utilities and housing for the elderly.

4.64 The draft Neighbourhood Plan is described as broadly consistent with emerging planning applications in relation to the New Eastern Villages and elsewhere in the neighbourhood plan area.

4.65 The Vision for South Marston, as set out in the emerging Neighbourhood Plan seeks to create "*a high quality integrated village with an enhanced sense of community, activity and safety and with a design that builds on the existing character and features in a sustainable manner*".

4.66 The Draft NP Policy 3 relates to development of a new Village Centre, to include an expanded primary school, village/community hall, and sports/play provision. Although a new community building, recreation and open space provision is sought, the emerging South Marston Neighbourhood Plan does not provide definitive guidance.

4.67 HHT has attended a number of planning and design discussions/workshops with South Marston Parish Council to explore the expansion of the village centre and the aspirations of the existing community. Alternative schematic options for the local centre are described in the Revised Design and Access Statement.

4.68 With regard to the location, range and combination of community facilities to be contained within the village centre for the expanded South Marston, the applicants recognise that proposals for the South Marston Village centre is a matter which the local community has been exploring and continues to develop.

4.69 A number of potential elements of the village centre are identified, albeit that the precise location, range and combination of community facilities to be contained within the village centre, and the extent to which they are generated by the expansion of South Marston remains to be finalised.

4.70 While one option is to accommodate a community building and/or facilities on land owned by the Parish Council adjacent to the application site, the application proposals provide for such provision within the application site should this prove to be the most appropriate means by which such community facilities can be provided or that such facilities as are necessary cannot or do not come forward on the Parish Council land. The application proposals demonstrate therefore that the likely requirements in respect of the village centre may be delivered in an appropriate manner.

Draft Supplementary Planning Document
New Eastern Villages Planning Obligations (March 2016)

4.71 The New Eastern Villages Planning Obligations Draft SPD is at consultation stage. It provides guidance to support the delivery of growth at the New Eastern Villages allocated through Local Plan Policy NC3.

5.0 MERITS OF THE PROPOSALS

5.1 Details in relation to Merits of the Proposals as set out in the Planning Statement (October 2013) remain applicable, and are referred to as:

- location of growth that is deeply rooted in an independently endorsed evidence base;
- Supporting Local Planning Policy Framework;
- Delivering some 10% of the overall requirement (22,000) for housing over the plan period supported by strong completion rates;
- Provision of a wide choice of homes to include a proportion of affordable housing;
- Provision of necessary infrastructure will be delivered at appropriate locations, timeframes and thresholds to serve the new community;
- Good standards of design to create a desirable new community;
- Development layout and structure as a whole has been influenced by the landscape context and topographical features of the site and seeks to enhance the sustainability of the proposals; and
- Proposals shaped by engagement with key stakeholders and the local community.

5.2 Were the Local Planning Authority unable to demonstrate a five year supply of housing land, then the benefits of the proposals are further reinforced.

Balance of Considerations

5.3 The application proposals have been subject to careful scrutiny first in the careful construction of an evidence base as the basis for the identification of the NEV as the most sustainable development option to accommodate objectively assessed housing needs in Swindon.

5.4 More particularly the proposals have been the subject of an ongoing environmental impact assessment process and assessment, throughout the determination process which has sought at all stages to identify any harmful impacts of the development. These are fully reported alongside the development, taking into account changes to the development proposals necessary to respond to comments received from consultees on the submitted application.

5.5 The environmental effects as presented in the ES (October 2013) have been considered in relation to the requests for further information made by the Council, together with the changes made to the development proposals, taking into account any updates to policy and/or guidance.

5.6 Any such changes to impacts of the development are presented as part of a comprehensive update to the ES submission as set out in the Environmental Statement Further Information submission (April 2016) and together with the Environmental Statement (October 2013), conclude that such impacts are very limited and in any event capable of effective mitigation.

5.7 In conclusion therefore there are no substantial and demonstrable adverse impacts of development to offset against the substantial benefits of the proposals, let alone impacts that are of such significance as to overturn the presumption in favour of sustainable development set out in the NPPF.

6.0 PLANNING OBLIGATIONS / S106 HEADS OF TERMS UPDATE

6.1 It is proposed that the landowners would enter into a Section 106 agreement with Swindon Borough Council, such an agreement being conditional upon the grant and implementation of the planning permission.

6.2 Some of the matters to be addressed in the S106 agreement are set out below in broad terms in outline and draft and are subject to discussion, negotiation, expansion and review.

DRAFT HEADS OF TERMS FOR SECTION 106 OBLIGATION

Parties:	Swindon Borough Council (SBC) Hannick Homes Limited Laing Homes Hallam Land Management Landowners
Effective Date:	The obligations are conditional upon the grant and implementation of the Planning Permission.
PLANNING OBLIGATIONS:	
Green Infrastructure and Public Open Space	To provide for Public Open Space (including pitches, play areas etc) and provide for an appropriate maintenance regime. While the majority of green infrastructure is likely to be accessible and managed through collection of Estate Rent Charge or similar arrangement, the proportion of land that is accessible and detailed management arrangements remain to be finalised.
Affordable Housing	• Proportion of Dwellings shall be Affordable Housing (up to 20% at South Marston and up to 30% at Rowborough – to be agreed) • Housing type and tenure to be agreed
Education	To provide site at Rowborough for primary

	school and agree mechanisms for delivery of primary education to serve needs of development. To make appropriate provision for additional primary school places at South Marston for instance to assist in the delivery of the expansion of the existing primary school or in the alternative, to provide a site at South Marston for a primary school and replacement residential land of an equivalent area, should the education provision at South Marston be delivered wholly within the Application Site. Contributions towards secondary education.
Transport	To carry out highway improvements to include proposed accesses into the site and to provide contributions to other off-site highway improvements as necessary and related to development.
Sustainable transport	Contributions to sustainable transport measures (e.g. contributions towards public transport services)
Community facilities	To make provision as appropriate and justified for additional community facilities and/or the enhancement of existing or proposed facilities including in relation to proposals being developed in relation to South Marston on land adjacent to the application site or within the application site.
Drainage	Provisions to ensure delivery of effective SuDS drainage system.

7.0 CONCLUSION

7.1 In summary, the proposed development at South Marston and Rowborough is in direct accordance with the Government's aspirations for sustainable growth that meets local needs and establishes new, healthy communities. It accords fully with the core planning principles of NPPF.

7.2 Paragraph 14 of the NPPF requires Local Planning Authorities to positively seek opportunities to meet the development needs of their area and approve development proposals that accord with the development plan without delay.

7.3 Swindon Borough Local Plan 2026 (adopted March 2015) includes the application site within a wider allocation of 8,000 new dwellings as part of the strategic planned growth east of Swindon, known as the New Eastern Villages, for which the Council are committed to its early delivery. The application is submitted within a supportive, up-to-date policy context and helps to deliver the Phase 1 of the wider NEV allocation.

7.4 The application demonstrates accordance with a requirement to provide the necessary infrastructure to support itself and to mitigate any impacts of development on existing communities. The Environmental Statement (October 2013), together with the Further Information submission (April 2016) that support the application confirm that no significant cumulative effects will arise from the proposed development in respect of its relationship to the remainder of the proposed allocation, and early implementation north of the A420 can be secured without fettering the progressive implementation of the wider infrastructure required for the for the NEV as a whole.

7.5 In conclusion and in the context of the growth agenda and the pressing national and local need for housing growth, the application proposes a major residential led urban extension capable of delivering new homes and supporting the planned growth of Swindon. There are no significant and demonstrable impacts that outweigh the very substantial benefits of granting consent. Therefore in accordance with the presumption in favour of sustainable development spelt out clearly in paragraph 14 of the NPPF, permission should be granted for the development.

David Lock Associates
Town Planning and Urban Design

50 North Thirteenth Street Central Milton Keynes MK9 3BP